Data Sharing Agreement

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1. Introduction to the Sharing

This Data Sharing Agreement [DSA] documents how the parties to this agreement, listed in Appendix A, will share personal data about children in Public Law Outline (PLO), with London Borough of Hammersmith and Fulham for onward sharing to Warrington Borough Council, in order to be able to create a national data set on children in PLO, who are subject to pre-proceedings or care proceedings and may or may not be a Child in Care . By signing this Agreement, the Local Authorities agree to accept the conditions set out in this document, according to their statutory and professional responsibilities, and agree to adhere to the procedures described.

This Agreement has been developed to:

- Define the specific purposes for which the signatory agencies have agreed to share information.
- Outline the Personal, Special Category and Criminal Data to be shared.
- Set out the lawful basis conditions under UK GDPR and Data Protection Act 2018 through which the information is shared, including reference to the Human Rights Act 1998
- Stipulate the roles and procedures that will support the processing/sharing of information between agencies.
- Describe how the rights of the data subject(s) will be protected as stipulated under the data protection legislation.
- Describe the security procedures necessary to ensure that compliance with responsibilities under data protection legislation and agency-specific security requirements.
- Describe how this arrangement will be monitored and reviewed.
- To illustrate the flow of information from referral through processing and outcome.

Parties to this agreement cannot amend or add appendices unless agreed as part of a formal review. It is expected that each party will have procedures, processes and policies sitting underneath this agreement, for their respective organisations. These will, for example, describe the specific processes for secure transfer of data.

1.1. Partner / Parties

For simplicity, the Partner Organisation will be referred to as ‘Partner’, ‘Partner Organisation’ or ‘Partner Agency’ in this agreement.

1.2. Responsibilities of parties involved

The parties are registered Data Controllers under the Data Protection Act. A list of signatories is at Appendix A.

All parties confirm that they comply with data protection legislation by:

- having a lawful basis for processing and sharing personal data.
- ensuring data quality.
- storing and sharing information securely, with access management controls.
- having policies and procedures for compliance with data protection legislation including for managing data subject rights and complaints, identifying and managing data breaches/incidents and retention & disposal.

- ensuring that mandatory training is undertaken regularly by their employees to ensure they are clear and up to date on their responsibilities. Every individual must uphold the principles of this agreement and overarching confidentiality, and seek advice from the relevant Data Protection Officer when necessary.
- undertaking appropriate data protection due diligence checks with any contractors/data processors they employ, and ensuring that a written agreement is in place with each data processor, and that all data processors will be bound by this agreement.
- having written processes for the processing of data to ensure employees use and share personal data in line with data protection law, the data protection principles, and this agreement.

Organisations and their staff must consult the organisation's Data Protection Officer/Information Governance Manager and/or Caldicott Guardian if they are unsure at any point in the processing and sharing of personal data.

1.3. Confidentiality and vetting

Each Partner must ensure that there are appropriate written contracts or agreements with employees, agency staff, volunteers etc. These must include requirements to ensure compliance with policies which include confidentiality.

Each Partner must ensure that suitable vetting has taken place. This may be through standard employee checks and DBS checks.

1.4. Assessment and review

This DSA is expected to run until September 2023 only. However, should the project and sharing continue after September 2023 then the DSA will be reviewed every 2 years, or sooner if major changes to the sharing are planned. The aim of any review will be to ensure the purposes are still relevant, the scope has not slipped, the benefits to the data subjects and organisations are being realised, and the procedures followed for information security are effective.

Changes in legislation and developments in the areas of public sector data sharing will be considered as and when they arise, as will any changes to the signatory parties.

1.5. Termination of agreement

In the event of termination of this agreement each party may continue to hold information originating from other parties for which they are Data Controller.

2. Purpose and Benefits

2.1. Purpose and benefits

This agreement covers the sharing of information by and between the listed parties for the purpose of sharing the data with Warrington Borough Council (WBC) for:

- forming a national data set and a score card on PLO.

- To be able to see the journey for a child from entering into and stepping out of PLO through data.
- To measure the effectiveness of Pre Proceedings for children.
- To be able to see national and regional differences in data.
- To be able to measure effectiveness against statistical neighbours.
- To improve systems to make digital data easy to run and report on.
- To support policymaking and funding in PLO moving forward.
- With the aim to be able to see performance reports on the services Social Care offers to children and families' who are subject to Public Law Outline.

The benefits of this DSA are to:

- Cover the sharing of information for the purposes above
- Sets parameters for sharing personal data and clearly identifies the responsibilities of organisations.
- Identify the correct lawful basis to share personal information.
- Ensure information is shared whenever there is a requirement to do so.
- Enables authorities to share data on performance, quality assurance, learning and impact analysis.

2.2. Lawful Basis

The sharing of information must comply with the law relating to confidentiality, data protection and human rights. Having a legitimate purpose for sharing information is an important part of meeting those legal requirements. This is a complex area and each Partner must take their own decisions and seek advice from their organisation's Data Protection Officer/Information Governance Manager and/or Caldicott Guardian.

Articles 6, 9 and 10 of the UK GDPR, and section 8 of the DPA 2018 set out the acceptable conditions for the processing and sharing of personal, special category, and criminal data. The conditions relevant in the UK GDPR to data processed under this agreement are below.

Article 6 (1) – Personal Data Processing. The processing is necessary for you to perform a task in the public interest or for your official functions, and the task or function has a clear basis in law.

Article 9 (2) – Special Category Personal Data Processing

Article 9(2)(h) Health or social care, the provision of social care: the processing is necessary; for the purposes of preventive or occupational medicine, for the assessment of the working capacity of the employee, medical diagnosis, the provision of health or social care or treatment or the management of health or social care systems and services on the basis of Union or Member State law. The Data Protection Act 2018 Schedule 1, Part 1 condition met is para 1 Employment, social security and social protection with the underlying law being the Children Act 2004

Article 9(2) (g) substantial public interest - processing is necessary for reasons of substantial public interest, on the basis of Union or Member State law which shall be proportionate to the aim pursued,

respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and the interests of the data subject. The Data Protection Act 2018 Schedule 1, Part 2 conditions are:

- Statutory etc., and government purposes under Para 6(1)(2)
- Safeguarding children and individuals at risk under Para 18(1)(2)(3)(4)
- With the legal basis for both being the Children Act 1989

Article 10 – Criminal Offence Data Processing

No criminal offence data is within scope of the sharing.

2.3. Consent

The parties will often work collaboratively with data subjects and aim for agreement with them on the actions to be taken. However, it is recognised that this is different to using consent (Article 6 (a)) or explicit consent (Article 9 (a)) as the lawful basis conditions used for processing under this agreement.

Consent is not the lawful basis the public sector organisations use for processing information shared under this agreement. It is noted that where consent is not the lawful basis for processing, consent does not need to be sought to share, and thus the concept of “overriding consent” is a misconception.

2.4. Proportionality and necessity

Proportionality, data minimization, necessity and not being excessive are factors to be taken into consideration when deciding whether to share personal information. In making the decision, employees must weigh up what might happen as a result of the information being shared against what might happen if it is not, and apply their professional judgement. It is for this reason professionals must ensure they comply with Article 5(1)(c) and share the adequate and relevant information, and limit that information to what is necessary for the achieving of the DSA aims. For this DSA it is considered that the data to be shared meets these requirements.

2.5. Freedom of Information

The Freedom of Information Act 2000 gives all individuals the right to access official information held by a public authority (the Environmental Information Regulations 2004 also allow access to data. For ease of drafting, FOI is used to cover both legislation). Limited exemptions may apply and all public authorities must ensure they have recognised procedures in place for administering requests of this nature.

All requests for FOI will be directed through the relevant organisations’ FOI processes. Each party will seek advice/opinion from the other parties where there is concern about that information being released and any impact it is likely to have. The final decision to disclose or not will lie with the party who received the request as the legal duty lies with them. In order to ensure that the authority in receipt of the FOIA request is able to respond within the statutory deadline, any request for assistance or information made to partner authorities should be made and processed within two working days, and any data exchange completed within seven working days.

It is encouraged that all parties proactively publish this document. It may also be disclosed to the public under FOI.

3. Individuals

Organisations processing personal data are required to begin with the ethos of Data Protection by Design and Default (also known as Privacy by Design (PbD)). This means that we must consider and uphold the privacy of an individual's data before we begin and throughout the processing taking place.

Each party agrees that they have undertaken a DPIA (Data Protection Impact Assessment), where they feel the processing meets the legislative criteria for a DPIA.

3.1. Right to be informed – Privacy notices

Where personal data is created or received by one of the parties, they are responsible, as required by law, for making the data subject(s) aware within a reasonable time frame that the organisation holds the data, what they will do with it, how long they will keep it, and who they will share it with (such as under this DSA). This is normally done through a privacy notice, whether written or verbal. Organisations agree that they will adhere to the transparency requirements of the UK GDPR and will issue appropriate notices which inform the data subject that the information will be shared with the parties under this agreement.

3.2. Data subject rights requests and complaints

Each organisation must have in place appropriate policies and processes to handle data subject requests made in line with data protection law, to ensure they are responded to within deadline and in an appropriate manner. Requests include; right of access, right to rectification, right to erasure, right to restrict processing, right to data portability, right to object and rights related to automated decision making including profiling.

If an individual successfully requests the erasure or limitation of use of their data (right to erasure, right to rectification, right to restrict processing, right to object), the party that has been informed by the data subject will communicate this to the other parties where relevant and appropriate. In each case each party is responsible for securely disposing of such information or limiting its processing.

Each party must have clear, fair and objective complaint procedures. Any complaints from individuals how their data is being processed or shared will be handled under the policy and processes of the organisation concerned.

3.3. Data subjects

The data subjects will be: individuals subject to Public Law Order (PLO) proceedings.

Many of the data subjects are vulnerable. Parties to this agreement are in positions of power over data subjects and data subjects have little or no control over why and how their data is processed.

4. Data

4.1. The data to be shared

Data that will be shared is: The data items to be shared as part of this agreement are indicated below, including a list of the PLO data for each child we will be capturing:

March 23

- Volume and rate of children and families in pre-proceedings between 01.10.2022 and 31.12.2022.
- Current pre-proceedings by child characteristics as of 31.12.2022 age, gender and ethnicity group.
- Length of time individual children in pre-proceedings as of 31.12.2022
- Length of time individual children open from referral as of 31.12.2022
- Pre-proceedings resulting in issue of care proceedings of individual children between 01.10.2022 to 31.12.2022.

May 2023

- Whether the child has been on a Child Protection Plan in this referral period
- Repeat periods of PLO.
- Number of review pre-proceeding meetings held with parents following initial pre-proceedings meeting.
- Were parents legal represented during pre-proceedings
- Were parents legal represented at point of issue
- Reason for 'short notice' applications - Drops downs will be given
- Number of hearings each case in care proceedings has had
- Outcome of care proceedings LA plan granted or not grated
- Final order granted Care Order, Supervision order, SGO
- Was the final order granted the same or different to initial lead application

July 2023

- Was Family Group Conferencing used in case
- Changes of social worker
- involvement of experts during pre-proceedings – inc. number, type and whether the expert was externally commissioned, supported / opposed by LA and/or Cafcass
- number of externally commissioned and completed specialist assessments e.g. PAMS, cognitive/ psychological
- Identification of carers / assessment of family care options e.g. viability/fostering assessments completed during pre-proceedings
- Whether the child has seen the submitted evidence
- Whether Cafcass has shared its recommendations with the child

4.2. Storing and handling information securely

Information must be stored and shared lawfully and securely. Special category data may need a higher level of security.

Individual data sheets will be sent by secure email to London Borough of Hammersmith and Fulham by the participant councils, for onward transmission by secure email by London Borough of Hammersmith and Fulham to Warrington Borough Councill.

Once Hammersmith & Fulham has securely transferred the data to Warrington Borough Council, the project officer will delete copies of the data from their mailbox and their SharePoint locations used to process the data so it is no longer accessible to them. Deleted data will be permanently deleted from H&F's MS365 platform in line with H&F's applied MS365 retention policies (7 years from creation/sent/received dates).

Information will be stored by London Borough of Hammersmith and Fulham (H&F) on their MS365 platform (e.g. Outlook, SharePoint, Teams) with appropriate access permissions applied e.g. username, password and multi-factor authentication (either the H&F user must either be using a corporate device on the network plus username and password or will be sent a one-time secure code to be used with their username and password).

In addition to usual audit logs of IT systems access, the London Borough of Hammersmith & Fulham with record the following information in relation to their collection and transfer activities:

- When the information was sent.
- Who the information was sent to, including both individual and agency name.
- What information was sent to the organisation/partner.
- How the information was transferred to the organisation/partner.
- When the information was acknowledged as received.

4.3. Access controls and security

All parties will ensure that they have appropriate technical and organisational security measures in place to guard against unauthorised or unlawful processing of personal data and against accidental loss or destruction of, or damage to, personal data.

All personal data held by partner organisations electronically will be stored in a secure network area with password protected entry and appropriate back-up functionality. The systems will be auditable so that it is possible for any auditor to establish who has accessed the system. All laptops, computers, and any other portable devices will be encrypted.

Any individual no longer required to have access will promptly have such access revoked by the line manager and Human Resources related to the relevant employer.

There is an expectation that partner organisations will either be working toward ISO 27001, the International Standard for Information Security Management, or a similar standard of security such as NHS Digital's Data Security and Protection Toolkit (DSP) and Cyber Essentials or Cyber Essentials Plus.

4.4. Outside UK processing

Parties are responsible for ensuring that if information is processed or shared outside the UK, that appropriate safeguards are in place and on condition that enforceable data subject rights and effective

legal remedies for data subjects are available. These are for example, a legally binding and enforceable instrument between public authorities or bodies, binding corporate rules, and/or standard data protection contractual clauses.

4.5. Data quality

Each partner is responsible for ensuring the accuracy and relevance of the personal data that it processes and shares and must have clear processes in place for managing data quality.

Any party learning of the inaccuracy of personal data is responsible for informing the parties with whom that data has been shared.

4.6. Data breaches/incidents

All parties must have a clear policy and procedure regarding the reporting and handling of data protection breaches or data loss incidents. This must include assessing the level of risk to the data subject(s), as well as to make a decision on notifying the ICO within the statutory time frame of 72 hours. This complies with Articles 33 and 34 of UK GDPR.

If the incident may impact the processing of another party to this agreement, all relevant parties should be informed and appropriate coordination of the incident must take place. The decision to report the incident will lie with the data controller(s) of the information concerned. The parties agree to provide all reasonable and necessary assistance at their own expense to each other to facilitate the handling of any personal data breach in an expeditious and compliant manner.

It is confirmed that security breaches (including misuse or unauthorised disclosure) are covered by the partner's internal disciplinary procedures. If misuse is found there should be a mechanism to facilitate an investigation, including initiating criminal proceedings where necessary.

4.7. Retention and Disposal

Organisations are required by data protection legislation to document processing activities for personal data, such as what personal data is held, where it came from and with whom it has been shared. This Record of Processing Activity (ROPA) must include the retention period for the data.

Information must not be retained for longer than necessary for the purpose for which it was obtained. Disposal or deletion of personal data once it is no longer required, must be done securely with appropriate safeguards, in accordance with that organisation's disposal policies.

5. Signatures

This agreement is signed on behalf of: London Borough of Hammersmith & Fulham

Name	Amana Gordon	
Position	Operational Director CYPS	
Contact Details	**Address:** LB Hammersmith & Fulham, Hammersmith Town Hall, London, W6 9JU	
	Phone No:	**E-mail: amana.gordon@lbhf.gov.uk**
Signature	[redacted]	**Date:** **13.04.23**
Main contact for data sharing (H&F Project Lead)		
Name	Gareth Peters	
Position	Care Proceedings Manager	
Contact Details	**Phone No:** [redacted]	**E-mail:** Gareth.Peters@lbhf.gov.uk

Signed by, for and on behalf of: London Borough of Camden

Name	Rashida Baig	
Position	Director of Children's Safeguarding and Social Work	
Contact Details	**Address:** 5 Pancras Square London	
	Phone No: [redacted]	**E-mail:** rashida.baig@camden.gov.uk
Signature	[redacted]	**Date: 28/04/2023**
Main contact for data sharing (Data Protection Officer)		
Name	Sarah Laws	
Position	Data Protection Manager	
Contact Details	Phone No: [redacted]	E-mail:DPA@camden.gov.uk

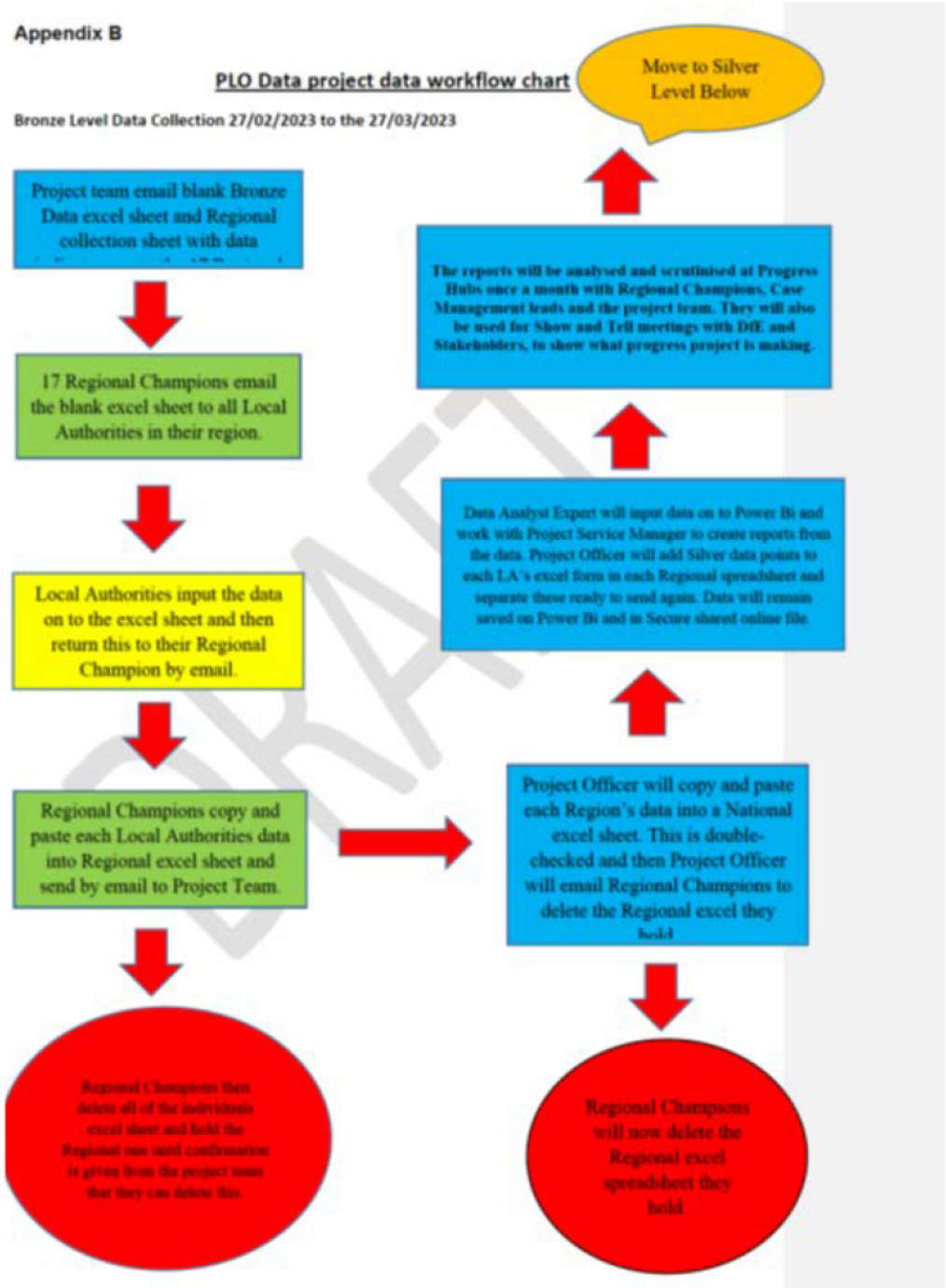
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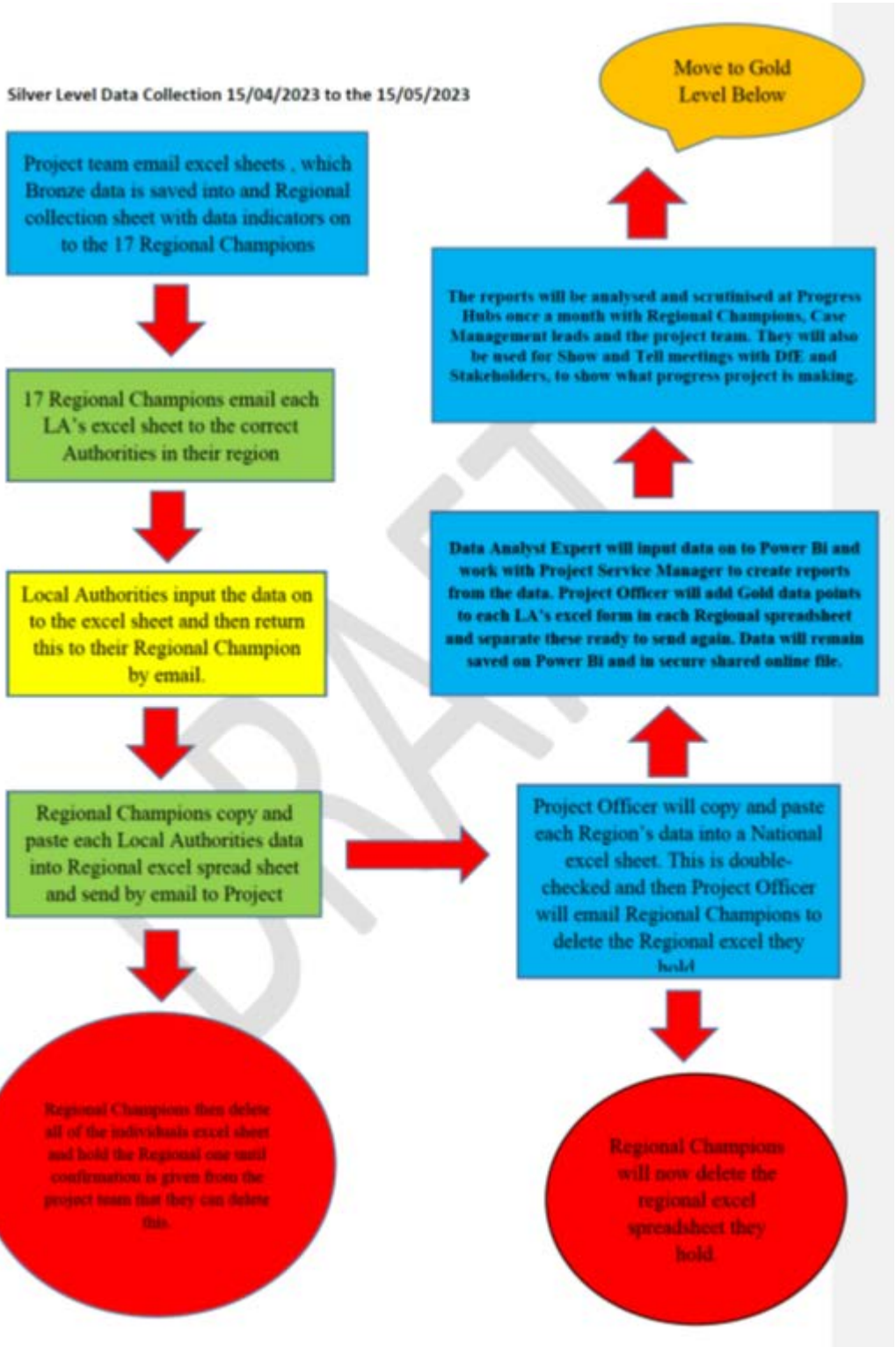
6. Appendices

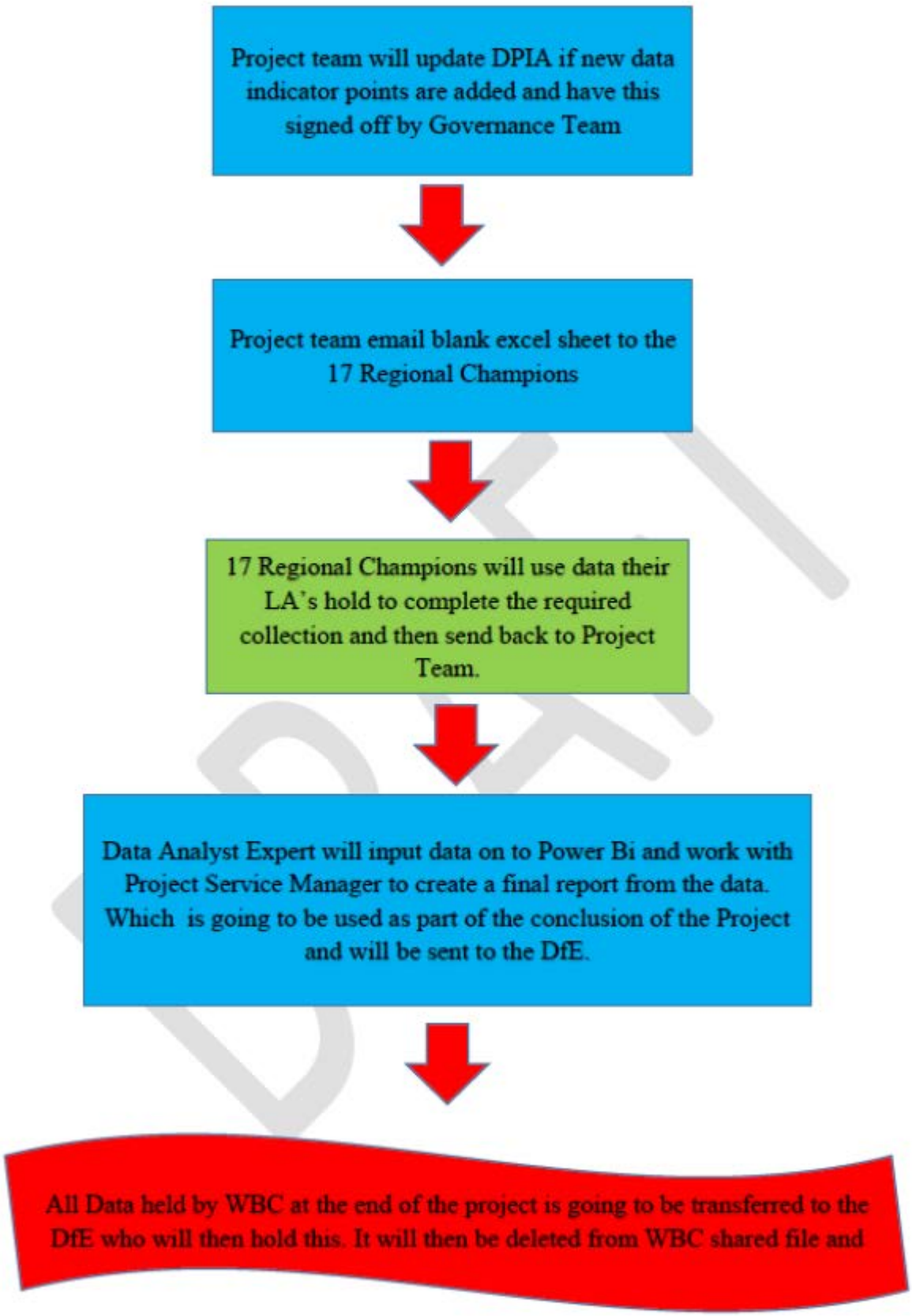
6.1. Appendix A: Parties to this agreement

Organisation	Duties
London Borough of Hammersmith and Fulham	• Regional lead council, responsible for collating information from other councils and sharing to Warrington Borough Council, as well as their own data under the DSA
Other councils taking part	• Providing data to LBHF the regional lead

6.2. Appendix B Data flows




Silver Level Data Collection 15/04/2023 to the 15/05/2023
Move to Gold Level Below
Project team email excel sheets , which Bronze data is saved into and Regional collection sheet with data indicators on to the 17 Regional Champions
17 Regional Champions email each LA's excel sheet to the correct Authorities in their region
Local Authorities input the data on to the excel sheet and then return this to their Regional Champion by email.
Regional Champions copy and paste each Local Authorities data into Regional excel spread sheet and send by email to Project
Regional Champions then delete all of the individuals excel sheet and hold the Regional one until confirmation is given from the project team that they can delete this.
Project Officer will copy and paste each Region's data into a National excel sheet. This is double-checked and then Project Officer will email Regional Champions to delete the Regional excel they hold
Regional Champions will now delete the regional excel spreadsheet they hold.
Data Analyst Expert will input data on to Power Bi and work with Project Service Manager to create reports from the data. Project Officer will add Gold data points to each LA's excel form in each Regional spreadsheet and separate these ready to send again. Data will remain saved on Power Bi and in secure shared online file.
The reports will be analysed and scrutinised at Progress Hubs once a month with Regional Champions, Case Management leads and the project team. They will also be used for Show and Tell meetings with DfE and Stakeholders, to show what progress project is making.


Project team will update DPIA if new data indicator points are added and have this signed off by Governance Team
Project team email blank excel sheet to the 17 Regional Champions
17 Regional Champions will use data their LA's hold to complete the required collection and then send back to Project Team.
Data Analyst Expert will input data on to Power Bi and work with Project Service Manager to create a final report from the data. Which is going to be used as part of the conclusion of the Project and will be sent to the DfE.
All Data held by WBC at the end of the project is going to be transferred to the DfE who will then hold this. It will then be deleted from WBC shared file and